

COUNCIL DECISION

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COUNCIL DECISION

of 26 May 2014

on the position to be adopted on behalf of the European Union at the 103rd session of the International Labour Conference concerning amendments to the Code of the Maritime Labour Convention

(2014/346/EU)

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on the Functioning of the European Union and, in particular, Article 218(9) in conjunction with Article 153(1)(b) and 153(2)(b) thereof,

Having regard to the proposal from the European Commission,

Whereas:

(1)

The Maritime Labour Convention, 2006, of the International Labour Organisation (ILO), hereinafter 'the Convention', establishes minimum working and living standards for all seafarers working on ships flying the flags of ratifying countries.

(2)

Amendments to the Code of the Convention, hereinafter 'amendments', have been adopted by the 'Special Tripartite Committee' established under the Convention, hereinafter 'the Committee', at its meeting on 7-11 April 2014. The amendments are submitted for approval to the 103rd session of the International Labour Conference on 28 May-12 June 2014.

(3)

The amendments concern the liability of shipowners with respect to compensation for claims due to death, personal injury and abandonment of seafarers.

(4)

Parts of the rules under the Convention and the amendments are falling within the Union's competence and concern matters in respect of which the Union has adopted rules. The amendments will interplay with existing acquis, in particular in the areas of social policy and transport. In particular, most of the provisions of the Convention have been the subject of Council Directive 2009/13/EC of 16 February 2009 implementing the Agreement concluded by the European Community Shipowners' Associations (ECSA) and the European Transport Workers' Federation (ETF) on the Maritime Labour Convention, 2006, and amending Directive 1999/63/EC (1). The implementation of the Convention in the Union is further ensured by Directive 2009/16/EC of the European Parliament and of the Council of 23 April 2009 on 'Port State Control' (2), as amended by Directive 2013/38/EU of the European Parliament and of the Council (3) and the 'Flag State Directive' 2013/54/EU of the European Parliament and of the Council (4) enforcing the Annex to Directive 2009/13/EC.

(5)

The amendments to the Code of the Convention approved by the International Labour Conference will enter into force for all Parties in accordance with and under the conditions provided for by Article XV of the Convention. It follows that the amendments to the Code of the Maritime Labour Convention will constitute an act of a body set up by an international agreement which will produce legal effects.

(6)

Given the above, in accordance with Article 218(9) TFEU, it is necessary that the Council adopts a decision to establish the position to be adopted on the Union's behalf, as regards matters falling within the Union's competence and in respect of which the Union has adopted rules, authorising at the same time Member States to act jointly in the interest of the Union, which is not a member of the ILO (5),

HAS ADOPTED THIS DECISION:

Article 1

1. The position of the Union at the 103rd session of the International Labour Conference shall be to support, as regards matters falling within the Union's competence and in respect of which the Union has adopted rules, the approval of the amendments to the Code of the Convention, adopted by the Committee at its meeting on 7-11 April 2014. The text of the amendments is attached to this decision.
2. The position of the Union as set out in paragraph 1 shall be taken by the Member States, acting jointly in the interest of the Union when approving the amendments to the Code of the Convention at the 103rd session of the International Labour Conference.

Article 2

This Decision is addressed to the Member States.

Done at Brussels, 26 May 2014.